

15. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

HEARING ON SUMMARY MOTION

FILED BY: DENARD, DESIREE

TENTATIVE RULING:

The Motion for Summary Judgment is **continued** by the Court to July 23, 2026, at 9:00 a.m.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-01311

CASE NAME: SAYED AMIR EFFATNEYAD VS. NEDA VALIASHRAFI

***HEARING ON MOTION FOR DISCOVERY MOTION TO QUASH DEPOSITION SUBPOENA FOR RECORDS**

FILED BY:

TENTATIVE RULING:

This matter is stayed. The Plaintiff is reminded of the requirement to show cause why this matter should not be dismissed—as was suggested by the Bankruptcy Court and Plaintiff's bankruptcy counsel—no later than July 30, 2026.

Law & Motion

Add On

17. 9:00 AM CASE NUMBER: C24-02737

CASE NAME: VANESSA MIGUEL VS. CONGREGATION B'NAI SHALOM OF CONTRA COSTA COUNTY

***HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT**

FILED BY:

TENTATIVE RULING:

The Court is in receipt of the Declaration of Kaitlyn Martinez. While the declaration answers that the settlement was difficult and the case faced many difficulties, it does not answer most of the Court's concerns. Still unresolved are: (1) how many aggrieved employees remain who have not signed releases; and (2) what actual benefit the aggrieved employees are receiving in exchange for their releases, as the Court calculated a minimal PAGA penalty amount total. As the Court previously stated,

this is an individual recovery and should proceed as one.

18. 9:00 AM CASE NUMBER: C25-01289

CASE NAME: DEONN MORGAN VS. EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)

*HEARING ON MOTION IN RE: DISMISS ACTION FOR FAILURE TO TRANSFER ACTION TO ALAMEDA COUNTY SUPERIOR COURT

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant East Bay Municipal Utility District, Defendant Latrice King, Defendant Deanna Zambrano Vasquez, and Defendant the Board of Directors of EBMUD (collectively, "Defendants")'s motion to dismiss this action without prejudice pursuant to Code of Civil Procedure section 399. The motion is opposed by Plaintiff Deonn Morgan ("Plaintiff" or "Morgan"). Plaintiff is in pro per.

Defendants move on the grounds that the Court ordered the action transferred to Alameda County Superior Court on October 29, 2025 and provided that "Plaintiff shall be responsible for all payment/transfer of the case" in accordance with Code of Civil Procedure section 399; that Plaintiff was served with the notice of entry of the Order After Hearing; that Plaintiff's writ of mandate filed with the California Court of Appeals and the California Supreme Court was denied and did not result in a stay of proceedings; and that more than 60 days have elapsed since Plaintiff was served with notice of entry of the Order After Hearing.

For the following reasons, the motion is **granted** and the action is **dismissed without prejudice**.

Request for Judicial Notice

Plaintiff's unopposed request for judicial notice of pleadings and orders in this case is **granted**. (Evid. Code §§ 452, 453.)

Brief Factual and Procedural History

Plaintiff filed her complaint for (1) unlawful denial of water service, (2) defamation of character, (3) negligence, (4) breach of contract, and (5) intentional infliction of emotional distress on May 7, 2025. On June 18, 2025 Defendants filed a motion to transfer the action to Alameda County Superior Court.

On October 23, 2025, the Court entered a minute order granting Defendants' motion to transfer this action to Alameda County Superior Court pursuant to Code of Civil Procedure section 397(a). The Court entered the proposed order on October 30, 2025 which provided that Plaintiff shall be responsible for all payment/transfer of the case within 30 days of proof of service of this Order After Hearing. Defendants filed a notice of entry of order and proof of service the following day.

The Order After Hearing also provided for a status conference regarding the transfer of the case on November 13, 2025. The minute order for that status conference stated that no action had been taken to transfer the case and directed Plaintiff to contact the clerk's office to make arrangements to